

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 08/20/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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2:00 PM LINE 1

20-CIV-05468

WEBSTER LINCOLN VS. ANTONIO LOPEZ, ET AL

WEBSTER LINCOLN
ANTONIO LOPEZ

TERANCE D. ORME
ANN M. RAVEL

Plaintiff's Motion for Sanctions & Attorneys' Fees for Bad-Faith Conduct Regarding the Filing of a False Proof of Service Per C.C.P. 128.5 and 128.7

TENTATIVE RULING:

For the reasons stated below, Contestant Webster Lincoln's Motion for Sanctions, Etc. is **DENIED**.

Defendant Antonio Lopez's Request for Judicial Notice is **GRANTED**.

Defendant's Objections Nos. 1–3 to Contestant's Reply are **SUSTAINED**.

BACKGROUND

In November 2020, Defendant Antonio Lopez ("Defendant") was elected to the East Palo Alto City Council, winning his seat against Contestant Webster Lincoln ("Contestant") by 69 votes. Contestant sought to annul the election, alleging that Defendant violated the Elections Code by campaigning within 100 feet of a ballot drop box on Election Day, allowing a taco truck to block an accessible parking space, and offering free tacos. The Court ruled in favor of Defendants. (Judgment, Apr. 21, 2021.) The judgment was affirmed by the Court of Appeal (Remittitur, July 7, 2022), and the Court subsequently awarded attorney's fees to Defendant. (Order Amending July 28, 2022 Order, filed Dec. 9, 2022.)

Defendant filed an Application and Order for Appearance and Examination ("AOEx") of Contestant as a judgment debtor on May 26, 2023. The examination was set for June 29, 2023. Defendant again filed an AOEx on May 19, 2025, which was initially set for hearing on July 3, 2025, and thereafter continued to July 17, 2025.

On July 7, 2025, Contestant filed a Motion to Quash Application and Order for Appearance and Examination ("Motion to Quash"). On July 11, 2025, Contestant filed an ex parte application to stay the debtor's examination, which the Court denied. Contestant thereafter filed a Notice of Special Appearance and Formal Protest on July 15, 2025, objecting to the examination on due process grounds.

At the July 17, 2025 hearing on the AOEx, the Court determined that the validity of the disputed service could not properly be resolved in that proceeding and, to preserve Contestant's due process rights, ordered the examination off calendar. (Minute Order, July 17, 2025.)

Defendant filed another AOEx on August 28, 2025. The examination ultimately proceeded on December 18, 2025. Contestant again sought ex parte relief to stay the examination, which the Court denied, noting that Contestant was required to proceed by noticed motion. (Order, Oct. 16, 2025.) Contestant's conduct during the December 18, 2025 examination resulted in the Commissioner suspending the examination until March 5, 2026, and issuing an order to show cause regarding Contestant's objections. At the March 5, 2026 hearing, the Court imposed sanctions against Contestant and subsequently determined that Contestant's conduct at the December 18, 2025 examination constituted contempt. (Order After Hearing, filed Mar. 30, 2026.)

Meanwhile, on November 6, 2025, the Court granted Contestant's Motion to Quash. In doing so, the Court expressly found that the proof of service filed in connection with the AOEx was false. Specifically, the Court found that the proof of service, which represented that Contestant had been personally served in the courtroom at 1:23 p.m. on May 28, 2025, was "demonstrably false."

Contestant also sought sanctions in connection with the Motion to Quash. The Court denied that request because sanctions under Code of Civil Procedure section 128.5 were required to be sought by a separate motion and Contestant had improperly incorporated the sanctions request into the Motion to Quash.

Contestant now again seeks sanctions against Defendant and his counsel based upon the filing of the false proof of service. Contestant seeks monetary sanctions in the amount of **\$27,750** and further asks the Court to make findings concerning the falsity of the proof of service and the alleged bad faith of Defendant and his counsel. The Motion additionally requests that the Court exercise its asserted inherent authority to offset, reduce, or vacate the judgment entered against Contestant.

SANCTIONS

Contestant seeks sanctions under Code of Civil Procedure sections 128.5 and 128.7.

Code of Civil Procedure section 128.7, subdivision (c)(1), provides in relevant part that "[a] motion for sanctions under this section shall be made separately from other motions or requests" and must describe the specific conduct alleged to violate subdivision (b). (Code Civ. Proc., § 128.7, subd. (c)(1).)

Section 128.5 contains a materially identical procedural requirement. It provides that "[a] motion for sanctions under this section shall be made separately from other motions or requests" and must describe the specific alleged action or tactic warranting sanctions. (Code Civ. Proc., § 128.5, subd. (f)(1)(A).)

The present Motion does not comply with the separate-motion requirement of either statute. In addition to requesting monetary sanctions under sections 128.5 and 128.7, Contestant asks the Court to exercise its asserted inherent authority to offset, reduce, or vacate the judgment. Thus, the statutory sanctions requests were not made separately from Contestant's other requests for relief.

The defect is particularly significant because the Court previously denied Contestant's request for sanctions arising from the same false proof of service on substantially the same procedural ground. In its November 6, 2025 ruling, the Court advised Contestant that a request for sanctions under section 128.5 was required to be brought separately. The present Motion again combines the statutory sanctions request with additional requests for substantive relief.

Contestant attempts in Reply to withdraw or otherwise disavow the additional requests for relief. That argument does not cure the defect in the Motion as filed. The statutory requirement is that the **motion for sanctions itself** be made separately from other motions or requests. (Code Civ. Proc., §§ 128.5, subd. (f)(1)(A), 128.7, subd. (c)(1).) A party may not cure a failure to comply with that requirement by materially restructuring the motion for the first time in reply.

The Court therefore need not determine whether Contestant otherwise satisfied any applicable safe-harbor requirements under sections 128.5 or 128.7, or whether the conduct previously identified by the Court would substantively warrant sanctions if presented through a procedurally proper motion.

The Court emphasizes that its ruling **DOES NOT** disturb its prior finding that the May 28, 2025 proof of service was demonstrably false. The present Motion is denied because the statutory procedures governing the requested sanctions have not been satisfied.

Accordingly, Contestant's Motion for Sanctions is **DENIED**.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of a blank Judicial Council form.

California Rules of Court, rule 3.1113(l), governs requests for judicial notice made in connection with motions, and rule 3.1306(c) requires the requesting party to provide the Court and opposing parties with copies of the material to be noticed where appropriate.

Evidence Code section 452, subdivision (c), permits judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." Judicial Council forms are proper subjects of judicial notice as official acts. (See *Alan v. American Honda Motor Co., Inc.* (2007) 40 Cal.4th 894, 904, fn. 5.)

The Request for Judicial Notice is therefore **GRANTED**.

DEFENDANT'S OBJECTIONS TO THE REPLY

Defendant's Objections Nos. 1–3 to Contestant's Reply are **SUSTAINED**. In particular, Contestant may not use his Reply to advance a materially new procedural theory or to cure the failure to comply with the statutory separate-motion requirement by withdrawing additional requests for relief that were included in the Motion as filed.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling to all parties who have appeared in the action as required by law. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

2:00 PM LINE 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

**CITY OF FOSTER CITY
ELIZABETH KARNAZES**

**BENJAMIN L. STOCK
PRO SE**

Further Proceedings – Court’s Ruling to Defendant John Hartford’s Demurrer

TENTATIVE RULING:

Parties to appear. All parties may appear remotely.

2:00 PM LINE 3

25-CIV-04881

JUDITH NEHER-FOSTER VS. YOSEMITE CAPITAL LLC, A CALIFORNIA LIMITED LIABILITY
COMPANY, ET AL

JUDITH NEHER-FOSTER
YOSEMITE CAPITAL LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

PRO SE
DANIEL S. CORNELL

Plaintiff's Motion to Consolidate, or in the Alternative, to Stay Unlawful Detainer Proceeding

TENTATIVE RULING:

For the reasons stated below, Plaintiff Judith Neher-Foster's Motion to Consolidate or, in the Alternative, to Stay Unlawful Detainer Proceeding is **GRANTED**.

As a preliminary matter, Defendants Yosemite Capital, LLC ("Yosemite"), Tom Malgesini, and California TD Specialists ("Trustee") failed to electronically bookmark the exhibits submitted in opposition, as required by California Rules of Court, rule 3.1110(f)(4). The parties are advised that future violations of the California Rules of Court may subject the offending party to sanctions. (Cal. Rules of Court, rule 2.30.)

Plaintiff Judith Neher-Foster ("Plaintiff") seeks to consolidate this action with the pending unlawful detainer proceeding filed against her by Yosemite, *Yosemite Capital, LLC v. Neher-Foster*, San Mateo County Superior Court case No. 25UDL01769. In the alternative, Plaintiff requests that the unlawful detainer proceeding be stayed pending resolution of this civil action.

Code of Civil Procedure section 1048, subdivision (a), provides that when actions involving a common question of law or fact are pending before the court, the court may order the actions consolidated and may make such orders concerning the proceedings as may tend to avoid unnecessary costs or delay. (Code Civ. Proc., § 1048, subd. (a).) Consolidation is intended to promote efficiency and avoid unnecessary duplication in the proof and determination of issues common to multiple actions. (*McClure v. Donovan* (1949) 33 Cal.2d 717, 721–722.)

Here, the two actions concern the same real property and substantially overlapping issues concerning Yosemite's asserted title and right to possession following the May 14, 2025 foreclosure sale. Plaintiff alleges in this action, among other things, that the underlying loan transaction and deed of trust were procured through fraud or otherwise invalid, that the foreclosure sale was improperly conducted, and that Yosemite obtained title as a result of that foreclosure. Plaintiff seeks, among other relief, to set aside or otherwise invalidate instruments affecting title to the property. Yosemite's unlawful detainer action, in turn, seeks possession based upon the title acquired through the foreclosure sale. Accordingly, the validity and effect of the foreclosure and the parties' competing rights to title and possession substantially overlap in the two proceedings.

A post-foreclosure unlawful detainer action under Code of Civil Procedure section 1161a differs from an ordinary unlawful detainer proceeding because it permits a limited inquiry into title. Under section 1161a, subdivision (b)(3), the purchaser must establish that the property was sold in accordance with Civil Code section 2924 and that title under the sale was duly perfected. The resulting inquiry into title, however,

remains “narrow and sharply focused” on the formal validity of the trustee’s sale. (*Asuncion v. Superior Court* (1980) 108 Cal.App.3d 141, 144; see Code Civ. Proc., § 1161a, subd. (b)(3).)

Plaintiff’s civil action presents substantially broader issues. Her claims encompass alleged fraud in connection with the underlying loan transaction, the validity and enforceability of the deed of trust, wrongful foreclosure, financial elder abuse, quiet title, cancellation of instruments, and related statutory and equitable relief. Those issues bear directly upon the parties’ competing claims to ownership and possession but extend beyond the limited title inquiry ordinarily contemplated in a summary proceeding under section 1161a.

“When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions.” (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385.) Where the court does neither and instead attempts to resolve complex title issues within the abbreviated procedures governing unlawful detainer, the parties’ ability to obtain a full adjudication of those issues may be improperly restricted. (*Ibid.*; see *Asuncion v. Superior Court*, supra, 108 Cal.App.3d at pp. 146–147.)

The circumstances here warrant consolidation. The validity and effect of the foreclosure sale bear directly upon Yosemite’s asserted right to possession, while Plaintiff’s civil action places the underlying transaction, foreclosure, and title directly at issue. Resolving the matters separately would create substantial duplication and a risk of inconsistent determinations concerning the same property.

The Court is not persuaded otherwise by Defendants’ contention that Plaintiff has failed to prosecute the civil action diligently or has been uncooperative in discovery. Defendants remain free to pursue appropriate discovery remedies after satisfying the applicable meet-and-confer requirements. Any discovery deficiencies can be addressed through the procedures provided by the Civil Discovery Act; they do not justify resolving the parties’ overlapping title and possession disputes through separate proceedings where consolidation is otherwise warranted.

Nor does the fact that the unlawful detainer action is designed to provide an expedited determination of possession require a different result. Complete consolidation necessarily affects the summary nature of the unlawful detainer proceeding. When an unlawful detainer action is consolidated for all purposes with an unlimited civil action, the consolidated matters are treated as a single civil action for purposes of further proceedings. (See *Martin-Bragg v. Moore*, supra, 219 Cal.App.4th at pp. 388–389; *Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 865) That consequence is appropriate here because the broader issues affecting title and possession should be determined in a proceeding that permits full adjudication of those claims.

Accordingly, Plaintiff’s Motion is **GRANTED**. San Mateo County Superior Court case Nos. **25CIV04881 and 25UDL01769 are CONSOLIDATED FOR ALL PURPOSES, INCLUDING TRIAL**.

Case No. **25CIV04881, Neher-Foster v. Yosemite Capital, LLC, et al., is designated as the lead case**. For purposes of all further proceedings, the consolidated actions shall be treated as a single action, and subsequent filings shall be made in the lead case as provided by California Rules of Court, rule 3.350.

The order granting consolidation shall be filed in each case pursuant to California Rules of Court, rule 3.350.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff Judith Neher-Foster shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rules 3.350 and 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the actions, as required by law. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

2:00 PM LINE 4

25-CIV-05413

DANIELLE DUBOIS VS. ALLYSON LYNN RANIER

DANIELLE DUBOIS
ALLYSON LYNN RANIER

UN HUI NAM
SUSAN H HOBSON

Defendant's Motion to Strike Portions of Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant Allyson Lynn Ranier's Motion to Strike Portions of Plaintiff Danielle Dubois's First Amended Complaint is **DENIED**.

Defendant Allyson Lynn Ranier ("Defendant") moves to strike Plaintiff Danielle Dubois's ("Plaintiff") prayer for punitive damages from the First Amended Complaint ("FAC").

MEET AND CONFER

Code of Civil Procedure section 435.5 requires the moving party, before filing a motion to strike, to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion. (Code Civ. Proc., § 435.5, subd. (a).)

Defendant's counsel states that the parties agreed to discuss the punitive-damages allegations on January 20, 2026, and that Plaintiff's counsel did not agree to withdraw the allegations or prayer for punitive damages. Although counsel's declaration does not clearly establish that the contemplated discussion actually occurred in the manner required by section 435.5, an insufficient meet-and-confer process is not grounds to grant or deny a motion to strike. (Code Civ. Proc., § 435.5, subd. (a)(4).) The Court therefore proceeds to the merits.

PUNITIVE DAMAGES

Civil Code section 3294 provides that, "[i]n an action for the breach of an obligation not arising from contract," a plaintiff may recover punitive damages upon proof by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).)

"Malice" means either "conduct which is intended by the defendant to cause injury to the plaintiff" or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Where there is no allegation that the defendant intended to cause injury, conscious disregard alone is insufficient; the conduct must also be despicable. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

“Despicable conduct” refers to circumstances that are sufficiently reprehensible to warrant the imposition of punitive damages. Thus, mere negligence, gross negligence, or recklessness does not, without more, establish malice within the meaning of section 3294. Rather, the pleaded facts must support a reasonable inference that the defendant engaged in despicable conduct with knowledge of the probable dangerous consequences and willfully failed to avoid those consequences. (See *College Hospital, Inc. v. Superior Court*, supra, 8 Cal.4th at p. 725; *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895–896.)

At the pleading stage, however, the plaintiff need not rely upon conclusory labels such as “willful,” “fraudulent,” “malicious,” or “oppressive” if the complaint alleges facts sufficient to apprise the defendant of the factual basis upon which punitive damages are sought and permits the appropriate legal conclusions to be drawn from those facts. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Here, Plaintiff alleges substantially more than an isolated instance in which Defendant negligently failed to control her dog. The FAC alleges that Defendant received warnings on four separate occasions beginning in 2019 concerning aggressive behavior by dogs under her care. (FAC, ¶ 33.) It further alleges prior incidents involving other dogs owned or controlled by Defendant. (FAC, ¶¶ 34–48.)

More significantly, the FAC alleges that in March 2025, only approximately three months before the incident at issue here, Henry attacked another dog at the same school playground after Defendant allowed Henry to be off leash. (FAC, ¶¶ 50–55.) Plaintiff further alleges that Defendant admitted to a neighbor that Henry was aggressive, could not be around other dogs, and needed to be muzzled when other dogs were present at the playground. (FAC, ¶ 56.)

Despite this alleged knowledge, Plaintiff alleges that Defendant again allowed Henry to be off leash at the same playground on June 10, 2025, while other dogs were present. According to the FAC, Henry attacked Plaintiff’s dog, Lucy, without provocation and thereafter bit and injured Plaintiff when she attempted to intervene. Plaintiff alleges that Defendant approached with a lack of urgency despite Plaintiff’s cries for assistance.

Taken as true for purposes of the present pleading motion and considered collectively, these allegations are sufficient to support a reasonable inference that Defendant knew Henry posed a significant danger to other dogs and persons attempting to intervene in an attack, yet deliberately failed to take measures—including restraining or muzzling Henry—to avoid the known danger. The alleged prior attack by the same dog at the same location, together with Defendant’s alleged acknowledgment that Henry was aggressive and needed to be muzzled around other dogs, distinguishes the allegations from a claim based merely upon negligence or an unforeseen dog attack.

The allegations are therefore sufficient at the pleading stage to support an inference that Defendant engaged in **despicable conduct with a willful and conscious disregard for the rights or safety of others** within the meaning of Civil Code section 3294, subdivision (c)(1). Whether Plaintiff ultimately can establish those allegations and satisfy section 3294’s clear-and-convincing-evidence standard presents an evidentiary question for a later stage of the proceedings and is not appropriately determined on this motion to strike.

Defendant also argues that allegations concerning prior incidents involving other animals are inadmissible under Evidence Code sections 352 and 1101. The Court need not determine the ultimate admissibility of such evidence at the pleading stage. The issue presented by this motion is whether the factual allegations of the

FAC, assumed to be true, sufficiently plead a basis for punitive damages. The admissibility of evidence offered to prove those allegations may be addressed at the appropriate stage of the proceedings.

Accordingly, Defendant's Motion to Strike Plaintiff's prayer for punitive damages is **DENIED**.

Defendant shall file and serve an answer to the FAC within **10 days after service of written notice of this order**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

**UD LAW AND MOTION CALENDAR
THURSDAY, AUGUST 20, 2026**

2:00 PM LINE 5

26-UDL-00369

SIU LAN CHAN VS. ANTHONY RENE COLON, JR, ET AL

**SIU LAN CHAN
ANTHONY RENE COLON**

**JOANNA KOZUBAL
PRO SE**

Plaintiff's Motion to Enforce Settlement Agreement Per CCP 664.6 and for Judgment Pursuant to Stipulation

TENTATIVE RULING:

Plaintiff Siu Lan Chan's Motion to Enter Judgment Against Defendant Anthony Rene Colon is **DENIED**. The Stipulation does not authorize entry of judgment for the \$21,600 principal balance of unpaid rent sought by Plaintiff, and the Court may not add that substantive term to the parties' agreement under Code of Civil Procedure section 664.6. Plaintiff has also failed to present sufficient evidence establishing the amount of recoverable daily damages and costs. Plaintiff may appear at the hearing and make an offer of proof concerning whether the evidentiary deficiencies relating solely to daily damages and costs can be cured by supplemental declarations. The contractual deficiency concerning the requested principal balance is not subject to cure by supplemental evidence.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

Posted: 3:00 P.M.
